DATED

AGREEMENT FOR THE LICENSING OF PRA RULEBOOK

between

BANK OF ENGLAND

and

[INSERT NAME OF LICENSEE]

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THIS AGREEMENT is made on the day of the last signature of the parties below ("**Commencement Date**")

PARTIES

(1) The Bank of England, whose principal place of business is at Threadneedle Street, London, EC2R 8AH (the "**Bank**"); and

(2) [INSERT NAME OF LICENSEE] incorporated and registered in England and Wales with company number [INSERT NUMBER] whose registered office is at [INSERT ADDRESS] (**Licensee**).

BACKGROUND

(A) The Bank and/or through its Prudential Regulation Committee, the PRA, are the owner or licensee from the FCA of the Content.

(B) Section 12 of the Bank of England and Financial Services Act 2016 amends the Financial Services and Markets Act 2000 (**FSMA**), so that the PRA is the Bank of England with prudential functions to be exercised by the Bank through its Prudential Regulation Committee. References in this Agreement to the PRA are to be construed accordingly.

(C) The Licensee wishes to use the Content and the Bank, on behalf of itself and the PRA has agreed to license the Licensee to use a copy of the Content subject to the terms and conditions of this Agreement.

AGREED TERMS

1. DEFINITIONS AND INTERPRETATION

1.1 The definitions and rules of interpretation in this Clause apply in this Agreement.

Affiliate: means, with respect to the Licensee, (i) any legal entity of which the securities or other ownership interests representing fifty per cent (50 %) or more of the equity or fifty per cent (50 %) or more of the ordinary voting power or fifty per cent (50 %) or more of the general partnership interest are, at the time such determination is being made, owned, Controlled or held, directly or indirectly, by such party, or (ii) any legal entity which, at the time such determination is being made, is Controlling or under common Control with, such party. As used herein, the term "Control", whether used as a noun or verb, refers to the possession, directly or indirectly, of the power to direct, or cause the direction of, the management or policies of a legal entity, whether through the ownership of voting securities, by contract or otherwise;

Business Day: a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business;

Confidential Information: means all information (whether written, oral or by another means and whether directly or indirectly) relating to the disclosing party

(including, for the avoidance of doubt, the PRA) ("**Disclosing Party**") whether created before or after the date of this Agreement including, without limitation, information relating to the Disclosing Party's: (i) Intellectual Property Rights, personal data, software, products, systems, operations, processes, plans or intentions, product information, know-how and market opportunities; and (ii) business, identity and affairs and the business, identity and affairs of its directors, officers, employees, customers and potential customers, suppliers, agents, or sub-contractors and the like, which comes into the possession of the other party (including, for the avoidance of doubt, the PRA) ("**Receiving Party**") and any market sensitive information;

Content: the PRA Rulebook as updated by the Bank from time to time comprising the consolidated instrument text that makes up the full PRA Rulebook and guidance documents in the form of policy statements and supervisory statements, which are published on the PRA Rulebook Website which shall be provided to the Licensee in accordance with the terms of this Agreement. For the avoidance of doubt, the Content excludes the Bank's and the PRA's Marks, and content in other websites linked from the PRA Rulebook Website;

Control: the beneficial ownership of more than 50% of the issued share capital of a company or the legal power to direct or cause the direction of the general management of the company, and **controls**, **controlled** and the expression **change of control** shall be construed accordingly;

Derivative Work(s): work(s) generated or developed by the Bank following the date of this Agreement which is based on the Content or an underlying work in relation to this (including translations or any other form in which a work may be recast, transformed or adapted), but excluding the Licenced Products;

End User: the Licensee's customer for, and the ultimate user of, the Licensed Products;

Environmental Information Regulation: the Environmental Information Regulations 2004 together with any guidance and/or codes of practice issued by the Information Commissioner or relevant government department in relation to such regulations;

Extended Term: shall have the meaning given to it in Clause 3.1;

FCA: Financial Conduct Authority;

FOIA: the Freedom of Information Act 2000 and any subordinate legislation made under this Act from time to time together with any guidance and/or codes of practice issued by the Information Commissioner or relevant government department in relation to such legislation;

Initial Term: shall have the meaning given to it in Clause 3.1;

Information Commissioner: the UK Information Commissioner's Office (and any replacement or successor body from time to time);

Intellectual Property Rights: patents, rights to inventions, copyright and neighbouring and related rights, moral rights, trade-marks and service marks, business names and domain names, rights in get-up, goodwill and the right to sue for

passing off or unfair competition, rights in designs, database rights, and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world, and Intellectual Property Rights include, without limitation, any Marks;

Licence Period: the Initial Term and any Extended Term;

Licensed Products: the Licensees products, sold (or offered for sale) which include or use the Content by providing commentary and updates on the PRA Rulebook, access to which is provided via the Licensees website only (for the avoidance of doubt this excludes any hard copy products);

Marks: any and all trade marks, trade names, service marks, trade dress, logos, URLs or identifying slogans of a party to this Agreement, whether or not registered;

PRA: Prudential Regulation Authority;

PRA Rulebook: the rulebook of the PRA which sets out the rules and directions made by the PRA which apply only to PRA-authorised firms as published on the PRA Rulebook Website;

PRA Rulebook Website: the website at www.prarulebook.co.uk, or such other website as notified to the Licensee by the Bank from time to time. For the avoidance of doubt, other websites linked from the PRA Rulebook Website are outside the scope of this Agreement;

Reserved Rights: all rights in, or in relation to, the Content, the Bank's and PRA's Marks, Derivative Work(s) and any other rights owned by the Bank that are not expressly granted to the Licensee under this Agreement, (whether such rights are known now, or created later, and whether or not in the contemplation of the parties at the time of this Agreement).

1.2 Clause and paragraph headings shall not affect the interpretation of this Agreement.

1.3 A **person** includes a natural person, corporate or unincorporated body (whether or not having separate legal personality).

1.4 A reference to a **company** shall include any company, corporation or other body corporate, wherever and however incorporated or established.

1.5 Unless the context otherwise requires, words in the singular shall include the plural words and in the plural shall include the singular.

1.6 This Agreement shall be binding on, and enure to the benefit of, the parties to this Agreement and their respective personal representatives, successors and permitted assigns, and references to any party shall include that party's personal representatives, successors and permitted assigns.

1.7 A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time.

1.8 A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.

1.9 A reference to **writing** or **written** includes fax but not e-mail.

1.10 Any obligation on a party not to do something includes an obligation not to allow that thing to be done.

1.11 Any words following the terms **including**, **include**, **in particular**, **for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.

2. PRA

2.1 The Licensee acknowledges and agrees that the Content is being licenced by the Bank for and on behalf of itself and/or the PRA; and, unless otherwise stated, all references to the "Bank" shall be construed accordingly.

3. LICENCE PERIOD

3.1 This Agreement shall commence on the Commencement Date and unless terminated earlier in accordance with Clause 11, shall continue until [[INSERT DATE]/[the date which is 12 months after the Commencement Date]] whereupon it shall terminate automatically (**Initial Term**), unless terminated earlier in accordance with Clause 11. The Parties may agree to extend the term of this Agreement for a period of [twelve (12) months] beyond the Initial Term (**Extended Term**) by written notice one (1) month before the expiry of the Initial Term.

4. GRANT OF LICENCE

4.1 The Bank hereby grants to the Licensee, during the Licenced Period, a non-transferable, non-exclusive licence, to:

(a) copy the Content, including hosting the Content on the Licensee's servers;

(b) make modifications to the Content only to the extent required for use of the Content in the Licenced Products; and

(c) make the Content available to its End Users provided that:

(i) the Content is only provided as part of the Licenced Products; and

(ii) such provision to End Users is in accordance with Clause 7.

4.2 The Licensee shall not grant sub-licences, in whole or in part, of any of the rights granted under this Agreement, or sub-contract any aspects of exploitation of the rights licensed to it, without the Bank's prior written consent.

4.3 The Bank may require the removal of, or editorial revisions to, any of the Content licensed to the Licensee under this Agreement at any time. The Licensee agrees to effect that removal or editorial revisions within 7 days of receipt of the request.

4.4 The Licensee shall:

(a) ensure that at all times it uses the most up-to-date version of the Content in its Licenced Products as made available on the PRA Rulebook Website and/or as made available by the Bank via JSON format to the Licensee from time to time;

(b) not use any Bank, PRA or FCA Marks or refer to the Bank, PRA or FCA in any way without prior written permission from the Bank, PRA or FCA except to acknowledge the Bank, PRA or FCA as the owners of the copyright;

(c) not do anything or permit anything to be done which may injure, damage, reduce or diminish the reputation, or name of the Bank, PRA or FCA; and

(d) not do anything or permit anything to be done which alters, changes or obscures the meaning conveyed by the Content so that the result is to give a false representation of the Content or which takes the meaning of a particular part of the Content out of the context of the whole.

5. BANK'S OBLIGATIONS AND RIGHTS

5.1 If the Content is made available by the Bank in JSON format, the Bank shall use all reasonable endeavours to deliver updates to the Content within 7 days of any update to the PRA Rulebook Website by updating the ODE PRA Rulebook Extraction site site via JSON format with email notification of the update being sent to an email address to be advised.

5.2 The Bank expressly retains the Reserved Rights for its own and/or third party exploitation.

5.3 The Bank may exploit (including by licensing it to third parties) the Content in any media, format or products.

6. LICENSEE'S OBLIGATIONS AND RIGHTS

6.1 The Licensee shall comply with all applicable laws in performing its obligations and exercising its rights under this Agreement.

6.2 The Licensee shall obtain, at its own cost, all clearances, consents and provisions (including from any relevant authorities, collection societies and other relevant third parties) that are required in connection with its exploitation of the Content, and shall

pay any applicable fees and royalties to any relevant collection societies in accordance with their rules.

6.3 The Licensee shall not, and shall procure that any End Users and permitted sub-licensees shall not, infringe any moral rights (as defined in Chapter IV of the Copyright, Designs and Patents Act 1988) that subsist in respect of the Content.

6.4 If the Licensee becomes aware of any misuse of any Content, the Licensee shall promptly notify the Bank and fully co-operate with the Bank to remedy the issue as soon as reasonably practicable. The Bank may suspend the Licensee's rights under this Agreement until the misuse is remedied.

7. USE BY END USERS

7.1 The Licensee shall require all End Users, before the Licensee delivers any Content to them, to agree to terms and conditions of use of the Content that:

(a) require them to comply with all applicable laws in using the Content;

(b) state that the Content being supplied is only for the End User's personal use;

(c) prohibit reproduction or distribution of the Content; and

(d) contain a reservation for the Bank of all Intellectual Property Rights and other rights in the Content;

8. INTELLECTUAL PROPERTY RIGHTS

8.1 The Bank retains ownership of all Intellectual Property Rights in the Content, PRA Rulebook Website, its Marks and in any Derivative Work(s) which it may create.

9. WARRANTIES

9.1 Each party warrants to the other that it has full power and authority to enter into and perform its obligations under this Agreement.

9.2 The Licensee warrants that its use of the Content in the Licensed Products:

(a) will not infringe any third party's Intellectual Property Rights;

(b) is not defamatory, libellous, obscene, or otherwise unlawful; and

(c) does not violate any applicable law, statute or subordinate legislation.

9.3 The Bank warrants that it owns, or is licensed to use, all copyright in the Content and that subject to Clause 9.2, the Licensee’s use and licence of the Content in accordance with the terms of this Agreement will not infringe any copyright belonging to any third party.

9.4 In the event of any claim being brought against the Licensee that the Licensee's normal use of the Content in accordance with the terms of this Agreement infringes the copyright of a third party, the Licensee:

(a) shall as soon as reasonably practicable notify the Bank in writing of any such claim of which it becomes aware;

(b) agrees that it shall not make any admission as to liability or compromise or agree any settlement of any claim without the prior written consent of the Bank, or otherwise prejudice the Bank or any other third party's defence of any claim;

(c) give the Bank or such person as the Bank shall direct, immediate and complete control of the conduct or settlement of all negotiations and litigation arising from any claim; and

(d) upon payment of its reasonable costs, give the Bank and such other third parties as the Bank shall direct all reasonable assistance with the conduct or settlement of any such negotiations or litigation.

9.5 In the event of a claim that the use by the Licensee of the Content in accordance with the terms of this Agreement infringes the copyright of a third party, the Bank shall have the right in its absolute discretion and at its own expense:

(a) to procure the right for the Licensee to continue using the Content in accordance with the terms of this Agreement;

(b) to make such alterations, modifications or adjustments to the Content so that it becomes non-infringing;

(c) to replace the Content; or

(d) terminate this Agreement immediately on written notice.

9.6 The Bank does not warrant the accuracy or completeness of the Content and is not liable to the Licensee for any errors or omissions in the Content except in the case of any negligent act or omission of the Bank

9.7 All other conditions, warranties or other terms which might have effect between the parties or be implied or incorporated into this Agreement or any collateral contract, whether by statute, common law or otherwise, are hereby excluded, including the implied conditions, warranties or other terms as to satisfactory quality, fitness for purpose or the use of reasonable skill and care.

10. PUBLICITY

10.1 The Licensee undertakes to ensure that its advertising and marketing of the Licensed Products and/or the Content (in any form) shall not reduce or diminish the reputation, image and prestige of the Content.

10.2 The Licensee shall not, without the prior written consent of the Bank make any announcements or publicise this Agreement or its contents in any way, or use the Bank's name, brand or Mark on the information technology systems owned and/or operated by the Licensee or Licensee Users or in any promotion, marketing or announcement, in each case without the prior written consent of the Bank.

11. TERMINATION

11.1 Without affecting any other right or remedy available to it, either Party may terminate this Agreement with immediate effect by giving written notice to the other Party if:

(a) the other Party commits a material breach of any term of this Agreement which breach is irremediable or (if such breach is remediable) fails to remedy that breach within a period of 30 days after being notified in writing to do so; or

(b) the other Party repeatedly breaches any of the terms of this Agreement in such a manner as to reasonably justify the opinion that its conduct is inconsistent with it having the intention or ability to give effect to the terms of this Agreement; or

(c) the other Party undergoes a change of control, which impacts adversely and materially on the performance of this Agreement; or

(d) the other Party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with its creditors other than for the sole purpose of a scheme for a solvent amalgamation of that other Party with one or more other companies or the solvent reconstruction of that other Party;

(e) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other Party other than for the sole purpose of a scheme for a solvent amalgamation of that other Party with one or more other companies or the solvent reconstruction of that other Party;

(f) an application is made to court, or an order is made, for the appointment of an administrator, or if a notice of intention to appoint an administrator is given or if an administrator is appointed, over the other Party;

(g) the holder of a qualifying floating charge over the assets of that other Party has become entitled to appoint or has appointed an administrative receiver;

(h) a person becomes entitled to appoint a receiver over the assets of the other Party or a receiver is appointed over the assets of the other Party;

(i) a creditor or encumbrancer of the other Party attaches or takes possession of, or a distress, execution, sequestration or other such process is levied or enforced on or sued against, the whole or any part of the other Party's assets and such attachment or process is not discharged within 14 days;

(j) any similar event occurs under the law of any other jurisdiction within the United Kingdom.

11.2 Either party may terminate this Agreement at any time during the Licence Period by giving 30 days written notice. For the avoidance of doubt, in the event of termination by either party under this Clause 11, on such termination, there will be no refund of the nominal fee of £1 to the Licensee.

11.3 On any expiration or termination of this Agreement:

(a) all rights and authorisations granted by the Bank to the Licensee under this Agreement shall automatically terminate and immediately revert to the Bank; and

(b) the Licensee shall immediately cease making use of the Content in its Licensed Products.

12. LIABILITY

12.1 Save where expressly provided, all conditions, warranties or other terms which might have effect between the parties or be implied or incorporated into this Agreement or any collateral contract, whether by statute, common law or otherwise, are hereby excluded to the maximum extent permitted by law.

12.2 Nothing in this Agreement shall operate to exclude or limit either Party's liability for:

(a) death or personal injury caused by its negligence;

(b) any breach of the terms implied by section 12 of the Sale of Goods Act 1979 or section 2 of the Supply of Goods and Services Act 1982;

(c) fraud; or

(d) any other liability which cannot be excluded or limited under applicable law.

12.3 Neither Party shall be liable for any losses or damages which may be suffered by the other Party (or any person claiming under or through the Licensee), whether the same are suffered directly or indirectly or are immediate or consequential, and whether the same arise in contract, tort (including negligence) or otherwise howsoever, which fall within any of the following categories: (a) loss of use; (b) loss of profits; (c) loss of anticipated savings; (d) loss of business opportunity; (e) loss of contracts; (f) loss of goodwill; or (g) loss arising from damaged, corrupted or lost data; provided that this Clause 12.3 shall not prevent claims for direct financial loss that are not excluded by any of categories (a) to (g) inclusive of this Clause 12.3;

12.4 Subject to Clause 12.2 and Clause 12.3, the Bank's liability under this Agreement for all Bank's defaults shall in no event exceed seventy thousand pounds (£70,000).

12.5 The Licensee acknowledges and agrees that:

(a) it shall not bring claims against the PRA and that all claims shall be brought against the Bank;

(b) the exclusions and limitations of liability set out in this Clause 12 shall also apply to the PRA, such that: (a) the aggregate financial limits on liability set out in Clause 12.4 shall include any liability of the Bank to the Licensee and the PRA to the Licensee; and (b) the PRA shall not be liable to the Licensee for any of the types of loss or damage described in Clause 12.3; and

(c) the PRA shall be entitled to enforce the provisions of this Agreement directly against the Licensee as a third party pursuant to the Contracts (Rights of Third Parties) Act 1999.

13. THIRD PARTY RIGHTS

13.1 Except where expressly provided to the contrary, this Agreement is not intended to be for the benefit of, and shall not be enforceable by, any person who is not named at the date of this Agreement as a party to it or any person who claims rights under the Contracts (Rights of Third Parties) Act 1999 or otherwise and neither party can declare itself a trustee of the rights under it for the benefit of any third party. The parties to this Agreement reserve the right to rescind or vary this Agreement without the consent of any third party who is expressly entitled to enforce this Agreement.

14. ASSIGNMENT AND OTHER DEALINGS

14.1 The Licensee shall not assign, transfer, mortgage, charge, subcontract, declare a trust over or deal in any manner with this Agreement or any of its rights and obligations under this Agreement without the prior written consent of the Bank, provided, however, that the Licensee may assign this Agreement to an Affiliate without consent.

14.2 The Bank may at any time assign, mortgage, charge, declare a trust over or deal in any other manner with any or all of its rights under this Agreement.

14.3 The Bank may subcontract or delegate in any manner any or all of its obligations under this Agreement to any third party.

14.4 The Licensee shall, at the Bank's request, execute any agreements or other instruments (including any supplement or amendment to this Agreement) which may be required in order to give effect to or perfect any assignment, transfer, mortgage, charge or other dealing referred to in Clause 14.3.

15. FORCE MAJEURE

Neither party shall be in breach of this Agreement nor liable for delay in performing, or failure to perform, any of its obligations under this Agreement if such delay or failure result from events, circumstances or causes beyond its reasonable control. In such circumstances the affected party shall be entitled to a reasonable extension of the time for performing such obligations. If the period of delay or non-performance continues for 3 months, the party not affected may terminate this Agreement by giving 30 days written notice to the affected party.

16. SEVERANCE

16.1 If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this Clause shall not affect the validity and enforceability of the rest of this Agreement.

16.2 If any provision or part-provision of this Agreement is invalid, illegal or unenforceable, the parties shall negotiate in good faith to amend such provision so that, as amended, it is legal, valid and enforceable, and, to the greatest extent possible, achieves the intended commercial result of the original provision.

17. NO PARTNERSHIP OR AGENCY

17.1 Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between any of the parties, constitute any party the agent of another party, or authorise any party to make or enter into any commitments for or on behalf of any other party except as expressly provided in Clause 2.

17.2 Each party confirms it is acting on its own behalf and not for the benefit of any other person, except as set out in Clause 2.

18. CONFIDENTIALITY & FREEDOM OF INFORMATION

Confidentiality

18.1 Each party undertakes that it shall not at any time during this Agreement, and after the expiry or termination of this Agreement, disclose to any person any Confidential Information, nor any of the terms of this Agreement, except as permitted by Clause 18.2.

18.2 Each party may disclose the other party's Confidential Information:

(a) to its employees, officers, representatives or advisers who need to know such information for the purposes of exercising the party's rights or carrying out its obligations under or in connection with this Agreement. Each party shall procure that its employees, officers, representatives or advisers to whom it discloses the other party's Confidential Information comply with the obligations set out in this Clause 18.2 as if they were a party to this Agreement; and

(b) as may be required by law (including any requirements for disclosure under the FOIA or the Environmental Information Regulations), a court of competent jurisdiction or any governmental or regulatory authority.

(c) where such information was in the possession of the party making the disclosure without obligation of confidentiality prior to its disclosure by the information owner;

(d) where such information was obtained from a third party without the obligation of confidentiality;

(e) where such information was already in the public domain at the time of the disclosure otherwise than by a breach of this Agreement; or

(f) where such information is independently developed without access to the other party's Confidential Information.

18.3 No party shall use any other party's Confidential Information for any purpose other than to exercise its rights and perform its obligations under or in connection with this Agreement.

Freedom of Information

18.4 The Contractor acknowledges that the Bank is subject to the requirements of the FOIA and the Environmental Information Regulations and shall assist and cooperate with the Bank to enable it to comply with its relevant disclosure obligations. The Bank shall be responsible, in its absolute discretion, for deciding whether any information is exempt from disclosure under FOIA and the Environmental Information Regulations.

19. NOTICES

19.1 Any notice or request required or permitted to be given or made under this Agreement

(a) shall be in writing;

(b) shall be sent to the party for the attention of the contact and at the address or email address listed in Clause 19.2 or such other address or email address as that party may notify in accordance with Clause 19.3;

(c) shall be sent by a method listed in Clause 19.4; and

(d) is deemed received as set out in Clause 19.4 if prepared and sent in accordance with this Clause 19.

19.2 The addresses and email addresses for service of notices are:

(a) The Bank:

(i) For the attention of: Head of Division, Data Systems and Change Operations, Strategy Risk and Operations Directorate

(ii) Address: Bank of England, Threadneedle Street, London, EC2R 8AH

(iii) Email address: pra.rulebook@bankofengland.co.uk

(b) The Licensee:

(i) For the attention of: [INSERT]

(ii) Address: [INSERT]

(iii) Email address: [INSERT]

19.3 A party may change its details given in Clause 19.2 by giving notice, the change taking effect for the party notified of the change at 9.00 am on the later of:

(a) the date, if any, specified in the notice as the effective date for the change; or

(b) the date five (5) Business Days after deemed receipt of the notice.

19.4 Any notice or communication shall be deemed to have been received:

(a) if delivered by hand, at the time the notice is left at the address;

(b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the second Business Day after posting;

(c) if sent by email, at the time of transmission, or, if this time falls outside business hours in the place of receipt, when business hours resume. In this Clause 19.4(c)19.4(c), business hours means 9.00 am to 5.00 pm Monday to Friday on a day that is not a public holiday in the place of receipt.

19.5 This Clause 19 does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

20. INADEQUACY OF DAMAGES

Without prejudice to any other rights or remedies that the either party may have, the parties acknowledge and agree that damages alone may not be an adequate remedy for any breach of the terms of this Agreement. Accordingly, the parties shall be

entitled to remedies of injunction, specific performance or other equitable relief for any threatened or actual breach of the terms of this Agreement.

21. WAIVER

No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

22. ENTIRE AGREEMENT

22.1 This Agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

22.2 Each party agrees that it shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this Agreement. Each party agrees that it shall have no claim for innocent or negligent misrepresentation based on any statement in this Agreement.

23. VARIATION

No variation of this Agreement shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

24. GOVERNING LAW

This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

25. JURISDICTION

Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

In consideration of the sum of £1, receipt of which is hereby acknowledged, the parties agree to be bound.

EXECUTED by the parties

For and on behalf of the Governor and For and on behalf of **[INSERT]**

Company **THE BANK OF ENGLAND**

By:	_____	By:	_____
Name:	_____	Name:	_____
Title:	_____	Title:	_____
Date:	_____	Date:	_____